

24STCV06086 24STCV06086

County: los-angeles

Division: Civil Law and Motion

Department: 509

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Case Number: 24STCV06086 Hearing Date: June 30, 2026 Dept: 509

Yoomin Kim v. General Motors, LLC

MOTION FOR SUMMARY JUDGMENT

MOVING PARTY: Defendant General Motors, LLC

RESPONDING PARTY(S): Plaintiff Yoomin Kim

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiff Yoomin Kim (Plaintiff) alleges defendant General Motors, LLC (Defendant) sold a defective 2023 Chevrolet Corvette.

On February 3, 2026, Plaintiff voluntarily dismissed this action without prejudice as to all defendants on all causes of action. (See 2/2/26 Request for Dismissal.) That request for dismissal was entered by the Clerk the same day.

On February 13, 2026, Defendant moved for summary judgment. After several substitutions of attorneys Plaintiff filed an opposition in early June.

TENTATIVE RULING:

Defendant's Motion for Summary Judgment is OFF CALENDAR AS MOOT.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion For Summary Judgment

On February 3, 2026, Plaintiff's voluntary dismissal was entered. On February 13, 2026, Defendant filed this motion for summary judgment. Neither party addresses this dismissal in the moving papers, opposition, reply, or sur-reply.

However, "[f]ollowing entry of such dismissal, the trial court is without jurisdiction to act further in the action." (Associated Convalescent Enterprises v. Carl Marks & Co., Inc. (1973) 33 Cal.App.3d 116, 120.) The Court only retains jurisdiction for limited collateral matters or in narrow situations in which a plaintiff dismisses their action to avoid inevitable adverse proceedings. (See Gogri v. Jack in the Box Inc. (2008) 166 Cal.App.4th 255, 261 ["Voluntary dismissal of an entire action deprives the court of both subject matter and personal jurisdiction in that case, except for the limited purpose of awarding costs and statutory attorney fees."]; see also Cravens v. State Bd. of Equalization (1997) 52 Cal.App.4th 253, 257 ["Appellant failed to file opposition within the requisite time. At that point, entry of summary judgment in favor of respondents became a formality which appellant could not avoid by the stratagem of filing a last minute request for dismissal without prejudice."] "An order by a court lacking subject matter jurisdiction is void." (Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909.)

Here, because Plaintiff's voluntary dismissal was entered before Defendant filed their motion for summary judgment, the Court does not have jurisdiction to hear this motion.

Accordingly, Defendant's Motion for Summary Judgment is MOOT.

IT IS SO ORDERED.

Dated: June 30, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.